

claims arise occurred here, and insofar as, on information and belief, all defendants reside here.

Facts

8. Rebecca Judge is the sister of Gary Weems.

9. Gary Weems died in the City of Lowell on November 6, 1993.

10. Gary Weems married Denise Richardson Weems on September 27, 1980. At the time of Gary Weems's death, he and Denise Weems had been separated for several years but were still legally married. Gary and Denise Weems had a daughter Jestina Weems, born November 23, 1984.

11. At the time of Gary Weems's death, his surviving next of kin included, in addition to his sister Rebecca Judge and daughter Jestina Weems, his father Donald Weems, his sister Valarie Faison, his brother Donald Weems, Jr. and several aunts, uncles, nieces and nephews.

12. Rebecca Judge and Denise Weems are Black.

13. Gary Weems was Black.

14. Gary Weems's dead body came to the attention of the Lowell Police on the morning of November 6, 1993.

15. At the time Mr. Weems's dead body was inspected by the Lowell Police, Mr. Weems had on his person numerous forms of

[REDACTED]

Somerville, Massachusetts. He also had on his person a savings bank passbook stating that the savings account was in the names of Gary Weems and Rebecca Judge.

16. These forms of identification could have been readily used to identify Rebecca Judge as Gary Weems's sister,

[REDACTED]

[REDACTED]

identification. Notification to Ms. Judge at 7 Walter Terrace could in turn have been used to notify Gary Weems's wife, Denise Weems, Gary Weems's other relatives, and Gary Weems's friends since the means for contacting all these persons were well known and readily available to Ms. Judge.

17. Notwithstanding this, and notwithstanding the defendants' legal obligation to notify Gary Weems's wife and next of kin of his death, and to deliver to them the personal property of the deceased found on or near his body, the defendants never contacted Rebecca Judge, Denise Weems or any of Gary Weems's other relatives.

18. As a direct result of this failure, Rebecca Judge, Denise Weems and Gary Weems's other relatives did not learn of Gary Weems's death until more than six weeks after the death.

19. As a further result of defendants' failure, Gary Weems was buried on or shortly after December 8, 1993 in potter's field in Lowell as an unknown person, without the wife, daughter, father, sisters, brother, other relatives and friends he did in fact have.

20. On information and belief, after Gary Weems's dead body came to the attention of the Lowell Police on November 6, 1993, the police did a homicide investigation.

21. During the course of this investigation, none of the defendant officers ever contacted, interviewed or spoke to Rebecca Judge, Denise Weems or any other of Gary Weems's relatives.

22. When Rebecca Judge, Denise Weems, and Denise Weems's mother, Jestina Richardson, who, like Ms. Judge and Ms. Weems, is Black, finally learned of Gary Weems's death, they went to the Medical Examiner's office, then located in Tewksbury. After arriving at the Medical Examiner's office, the three women asked to speak to Medical Examiner Gerald Feigin. Initially, Dr. Feigin resisted meeting with them. When he finally did meet with them, and Ms. Judge asked him to show them something that would assure them that the body that had been buried was indeed the body of Gary Weems, Dr. Feigin reacted angrily and shoved a photograph of the dead man so far into Ms. Judge's face that she could not see it. When she, Ms. Weems and Ms. Richardson finally were able to make it out as a photograph of Gary Weems, a photograph that provided to them the first concrete evidence that Gary was indeed dead, they experienced and manifested sadness and grief. Ms. Judge then asked Dr. Feigin to provide them with further information regarding the circumstances of Gary Weems's death. Instead of responding to this request with the sensitivity and openness the situation required, Dr. Feigin

started yelling at the three women that he had showed them the photograph, that the photograph should be good enough for them

[REDACTED] this." Following this outburst, Dr. Feigin provided only partial and misleading information to the three women, and flatly refused to provide them with the information in his possession and control to which they were entitled.

23. Subsequently, Ms. Judge, Ms. Weems and Ms. Richardson went to the Lowell Police Department. After arriving at the police station, the three women were directed to a police officer who, to the best of Ms. Judge's current knowledge and belief, was Police Officer Chevalier. During their conversation with this police officer, the officer used the street names of certain illegal drugs. When Rebecca Judge stated that she did not understand what he was referring to, the officer responded in a manner which insinuated that because she was Black, she must know what he was referring to, and her claim that she did not know was disingenuous. At another point in the conversation, when Ms. Judge asked whether the Lowell Police had found any forms of identification regarding Gary Weems, the officer stated that they had not. Further, when Ms. Judge asked for the return of any personal belongings of Gary Weems that had been found, the officer said there weren't any, that the only thing that had been found was a knife, did Ms. Judge want the knife. On information and belief, at the time the officer made the foregoing statements, he knew they were false -- in fact, the Lowell Police

had recovered numerous forms of identification and the savings account passbook identified above, and had not recovered any knife belonging to Gary Weems -- or made them with reckless disregard as to whether they were true or false. In response to the requests of Ms. Judge, Ms. Weems and Ms. Richardson for information regarding the circumstances of Gary Weems's death, the officer provided misleading and incomplete information.

24. Prior to commencement of this lawsuit, Rebecca Judge advised Denise Weems of Ms. Judge's desire to bring such a lawsuit, and Ms. Weems supported Ms. Judge by giving to her the envelope of Gary Weems's personal property, forms of identification and effects which had ultimately been obtained from the Lowell Police Department.

25. During their investigation of Gary Weems's death, the defendant police officers took witness statements from three individuals: Kenneth Newhall; Kevin Purtell; and Robert Adams. These witness statements, reproduced collectively as Exhibit 1 hereto, provided evidence that Gary Weems had died under highly suspicious circumstances. This evidence included, without limitation, evidence that:

a. Gary Weems had died as a direct result of someone else having injected him intravenously, at a time when Gary Weems was unconscious, with cocaine, cocaine mixed with heroin and/or cocaine mixed with an amphetamine;

b. the witnesses contradicted one another as to the identity of the person or persons who caused Gary Weems's death

by so injecting him, with Kevin Purtell stating that the fatal injection was administered by Robert Adams and Robert Adams stating that the fatal injection or injections were administered by two individuals named Kenny and Eddie;

c. after the persons present realized that the injection or injections may have killed Gary Weems, they did not seek to get medical help or contact the police; instead, one of the persons present simply dragged Gary Weems's body out of the building where they had all been and just dumped him face down;

d. Gary Weems had received over \$90 in cash around

his dead body was discovered at about 8:00 a.m. on November 6, 1993;

e. at some point during the night of November 5-6, 1993, Gary Weems's pockets were turned inside out.

26. On information and belief, at the time defendant Feigin prepared his Autopsy Report on the death of Gary Weems, defendant Feigin knew of some or all of the evidence of suspicious circumstances discovered by the Lowell Police. Nevertheless, in his Autopsy Report, reproduced as Exhibit 2 hereto, defendant Feigin made no reference to any of this evidence. Nor did defendant Feigin make any recommendation to the district attorney's office that the death of Gary Weems be further investigated.

27. Notwithstanding the evidence of suspicious circumstances they discovered, the defendant police officers

failed to pursue their investigation into the death of Gary Weems. On information and belief, this failure included, without limitation:

- a. a failure to interview or attempt to interview critical witnesses identified as being present at the time Gary Weems was fatally injected;
- b. a failure to interview any of the members of Gary Weems's family; and
- c. a failure to ask the district attorney's office to get involved in the matter.

Claims

COUNT I - Against Defendant Police Officers and Defendant Medical Examiner

28. Plaintiff repeats and realleges each of the preceding paragraphs of this Complaint.

29. Defendant police officers and defendant medical examiner were legally obligated to:

- a. notify Gary Weems's wife and next of kin of Gary Weems's death;
- b. deliver in timely fashion to Gary Weems's wife and next of kin the personal property of Gary Weems found on or near his body;
- c. carefully inquire into the cause and circumstances of Gary Weems's death;
- d. respect the right of Gary Weems's wife and next of kin to dispose of his body as they wished;

e. respond truthfully to requests for information regarding Gary Weems's death made by members of Gary Weems's family;

f. investigate the circumstances of Gary Weems's death with due regard to the possibility that the death may have resulted from criminal acts;

g. pursue carefully evidence of suspicious circumstances regarding Gary Weems's death;

h. notify the district attorney's office of evidence warranting the attention of that office.

30. Defendant police officers and defendant medical examiner were constitutionally required to discharge each of the foregoing obligations for the benefit of all persons without invidious discrimination.

31. In fact, in discharging their foregoing legal obligations, defendant police officers and defendant medical examiner violated their constitutional duty by discriminating against Rebecca Judge on the basis of her race and the race of her deceased brother Gary Weems and his wife Denise Weems, thus denying to Rebecca Judge the equal protection of the laws secured by the Fourteenth Amendment.

32. On information and belief, the conduct of defendant police officers and defendant medical examiner would not have been characterized by the gross deficiencies with which it was characterized had Rebecca Judge, her deceased brother Gary Weems and his wife Denise Weems been White, instead of Black.

33. On information and belief, what happened here is part and parcel of a pattern and practice, pursuant to which one level of care is used by defendants in the investigation of the deaths of White persons, and another, inferior level of care is used by defendants in the investigation of the death of Black persons, particularly if the Black persons in question are ostensibly of a low economic class and the cause of death is ostensibly a drug overdose. Plaintiff's information and belief in support of this allegation includes, without limitation, the case of the death of Kasha Blount, a 19-year-old, pregnant Black woman who died in February 1990. Like the death of Gary Weems, the death of Kasha Blount occurred under highly suspicious circumstances which were not properly investigated. Newspaper clippings on the Kasha Blount case are reproduced as Exhibit 3 hereto. There are striking parallels between the Blount case and the case of Gary Weems, not the least of which is that the Medical Examiner in both cases was defendant Feigin. On information and belief, the similarities between the Blount case and the Weems case derive from the fact that both are the result of a pattern and practice of racial discrimination in the investigation of sudden death.

34. As a result of the above-described constitutional violation, Rebecca Judge has suffered injury, loss and damage.

COUNT II -
Against Defendant
City of Lowell

35. Plaintiff repeats and realleges each of the preceding paragraphs of this Complaint.

36. The defendant City of Lowell is also responsible for plaintiff's injuries because it exhibited deliberate indifference to the circumstances which caused those injuries in the following ways:

a. It failed to establish a custom and policy that prohibited discrimination on the basis of race in the discharge of the legal obligations at issue.

b. It failed to recruit and train its police officers in such a way as to ensure they would not discriminate on the basis of race in the discharge of the legal obligations at issue.

COUNT III -
Against Defendant Medical Examiner Feigin

37. Plaintiff repeats and realleges each of the preceding paragraphs of this Complaint.

38. Defendant Feigin intended to cause, or should have known that his conduct described above would cause, Rebecca Judge emotional distress.

39. Defendant Feigin's conduct was extreme and outrageous.

40. Defendant Feigin's conduct caused Rebecca Judge to suffer severe distress.

COUNT IV -
Against Defendant Police Officer Chevalier

41. Plaintiff repeats and realleges each of the preceding paragraphs of this Complaint.

42. Defendant Chevalier intended to cause, or should have known that his conduct described above would cause, Rebecca Judge emotional distress.

43. Defendant Chevalier's conduct was extreme and outrageous.

44. Defendant Chevalier's conduct caused Rebecca Judge to suffer severe distress.

WHEREFORE, plaintiff respectfully requests that this Court enter judgment against defendants:

1. granting Rebecca Judge compensatory damages and, if the evidence warrants, punitive damages;
2. issuing an injunction requiring the City of Lowell to adopt a custom and policy, and standards of recruitment and training, that will prevent the type of discrimination which occurred here from occurring in the future;
3. granting Rebecca Judge interest, costs, and attorneys' fees;

4. granting such other and further relief as the Court deems appropriate.

PLAINTIFF CLAIMS TRIAL BY JURY.

Dated: July 25, 1997

Respectfully submitted,

David J. Fine

David J. Fine, BBO #165120
Dangel, Donlan and Fine

[REDACTED]
Boston,
(617) [REDACTED]

Attorneys for Plaintiff

Certificate of Service

I hereby certify that I have this day served the foregoing by causing a true copy thereof to be mailed, first class postage prepaid, to: Assistant Attorney General Michelle A. Kaczynski, Trial Division, [REDACTED] Boston, Massachusetts 02114, counsel for defendant Gerald Feigin; Thomas E. Sweeney, Esq., City Hall, Law Department, [REDACTED] counsel for defendants City of Lowell and John J. Sheehan; Michael J. Akerson, Esq., Reardon & Reardon, One Exchange Place, Worcester, Massachusetts 01608, counsel for defendants William M. Taylor and William F. Busby; and Joseph G. Donnellan, Esq., International Brotherhood of Police Officers, [REDACTED] defendants Daniel R. Brady, Lewis Hunter and Barry Chevalier.

Dated: July 25, 1997

David J. Fine
David J. Fine

« back 160 F.3d 67

Rebecca JUDGE, Plaintiff, Appellant,

v.

CITY OF LOWELL, et al., Defendants, Appellees.

United States Court of Appeals,
First Circuit.

*Heard Sept. 9, 1998.
Decided Nov. 18, 1998.*

David J. Fine, with whom Dangel, Donlan and Fine was on brief for appellant.

Thomas E. Sweeney, City Solicitor, for appellee City of Lowell.

Neil Sherring, Assistant Attorney General with whom Michelle A. Kaczynski, Assistant Attorney General and Scott Harshbarger, Attorney General, were on brief for appellee Gerald Feigin, M.D.

Joseph G. Donnellan for appellees Daniel R. Brady, Barry Chevalier and Lewis Hunter.

Austin M. Joyce, with whom Michael J. Akerson and Reardon & Reardon were on brief for appellees William M. Taylor and William F. Busby.

Before TORRUELLA, Chief Judge, CAMPBELL, Senior Circuit Judge, and STAHL, Circuit Judge.

LEVIN H. CAMPBELL, Senior Circuit Judge.

1 Rebecca Judge brought this action pursuant to 42 U.S.C. § 1983 against the City of Lowell, Officers John J. Sheehan, Daniel R. Brady, William M. Taylor, William F. Busby, Lewis Hunter, Barry Chevalier, David Tousignant, and Garrett Sheehan of the Lowell Police Department (in their individual capacities), and Medical Examiner Gerald Feigin, M.D. (in his individual capacity), for alleged violations of the Equal Protection Clause of the Fourteenth Amendment to the United States Constitution. Judge also brought claims under state law against Dr. Feigin and Officer Chevalier for intentional infliction of emotional distress. Defendants moved to dismiss the section 1983 claims in Judge's Third Amended Complaint pursuant to Fed.R.Civ.P. 12(b)(6) for failure to set forth a claim for relief. The court granted defendants' motions to dismiss the section 1983 claims and declined to exercise supplemental jurisdiction over the remaining state law claims. Judge appeals from the order granting defendants' motions to dismiss. We affirm.

I. BACKGROUND

2 We summarize the facts and allegations set forth in the Third Amended Complaint.¹ Judge, who is black, is the sister of Gary Weems, who died on November 6, 1993. Weems was also black. On the date of Weems's death, both Judge and Weems resided at 7 Walter Terrace in Somerville, Massachusetts.

John J. Sheehan
Died
retired in
95

Daniel R. Brady
508-453-2777
Alken ave
Lowell MA
01850
978-453-9516

1
2
3 Weems married Denise Richardson Weems in 1980, but they had been separated
« back for several years at the time of Weems's death.

3 The Lowell Police Department discovered Weems's body on or about November
6, 1993. At that time, Weems had on his person various forms of identification that
indicated that he lived at 7 Walter Terrace. He also had a bank passbook indicating
that he and Judge jointly held a savings account. Notwithstanding the discovery of
these items, the Lowell Police Department did not contact Judge or any other
member of Weems's family to inform them of Weems's death. As a result, Judge did
not learn of her brother's death until approximately six weeks after it occurred. In
[REDACTED] person."

4 After the Lowell Police Department discovered Weems's body, it conducted a
homicide investigation. Police officers took witness statements from three
individuals. Those statements indicated that Weems may have died as a result of an
injection of narcotics administered by another person. In their statements, the
witnesses contradicted one another as to the identity of the person or persons who
administered the injection. The witnesses also indicated that (1) Weems had
[REDACTED]
on his person when his body was discovered the next day, and (2) at some point
during the night of November 5, 1993, Weems's pockets were turned inside out.
Notwithstanding this evidence, the officers did not investigate Weems's death
further. The officers did not interview additional persons who may have been
present at the time of Weems's death. They did not seek out and interview any of
Weems's family members.

5 Judge learned of Weems's death sometime in December, 1993. Shortly after
learning that Weems had died, Judge, along with Denise Weems and Jestina
Richardson, Denise Weems's mother (both of whom are also black), went to the
office of Gerald Feigin, the Medical Examiner who had performed an autopsy on
Weems's body. Initially, Dr. Feigin resisted meeting with the women. After Dr.
Feigin agreed to meet with them, Judge asked Feigin to show the women something
to demonstrate that the body that had been buried approximately six weeks earlier
[REDACTED] angrily and shoved a photograph of the
dead man so far into Ms. Judge's face that she could not see it." (Third Amended
Complaint, p 22.) When Judge requested further information concerning the
[REDACTED] yelling at the three women that
he had showed [sic] them the photograph, that the photograph should be good
enough for them and that he did not have time 'for this.' " See id.

6 Judge alleges on information and belief that at the time Dr. Feigin prepared his
[REDACTED] circumstances"
discovered by the police, yet failed to include this information in his report. Dr.
Feigin did not make any recommendation to the district attorney's office that
Weems's death be further investigated.

7 Judge, Denise Weems and Ms. Richardson also visited the Lowell Police
Department. The women spoke to an officer, believed to be Officer Chavalier, who,
during their conversation, used the street names of certain drugs. When Judge
[REDACTED] officer
responded in a manner which insinuated that because she was Black, she must
know what he was referring to, and her claim that she did not know was
disingenuous." When Judge asked the officer whether the police had found any
forms of identification on Weems's person, the officer replied that they had not.
When Judge asked for the return of Weems's personal belongings, the officer stated
that the only item found on Weems's person was a knife. In response to questions